

an unsigned memorandum was written out by the legatee at the time of executing the codicil containing the wishes of the testator, it was held by V. C. Hall that the Court would execute the trust (*d*).]

7. **Admission and rejection of parol evidence as against the title of executors.** — So if a person before the Act of 11 G. 4. & 1 W. 4, c. 40, had been simply appointed executor, which conferred upon him a title to the surplus beneficially, averment was not admissible to make him a trustee for the next of kin (*e*). But apparently, the authorities established that if from any circumstance appearing on the face of the will, as the gift of a legacy to the executor, the law *presumed* only that he was *not* intended to take the surplus beneficially, the executor might rebut that presumption by the production of parol evidence (*f*), when of course the next of kin might fortify the presumption by opposing parol evidence in contradiction. Where, however, the will itself invested the executor with the character of trustee, as by giving him a legacy “for his trouble,” or by styling him a “trustee” expressly, the *primâ facie* title to the surplus was then in the next of kin, and parol evidence was not admissible [*61] *to disprove the express intention (*a*). By the act referred to, an executor is made *primâ facie* a trustee for the next of kin (*b*). But where there are *no next of kin* the title of the executor, as against the *Crown*, is not affected by the statute, and the old law applies (*c*). But if the executor be stamped by the will with the character of trustee, and there are no next of kin, the *Crown* will take (*d*). And of course, whether there be next of kin or not, if it appear from

[(*d*) *Re Fleetwood*, 15 Ch. D. 594; and see *Re Boyes*, 26 Ch. D. 531.]

(*e*) *Langham v. Sandford*, 19 Ves. 604, *per* Lord Eldon; *White v. Williams*, 3 V. & B. 72; S. C. Coop. 58; [see *Stewart v. Stewart*, 15 Ch. D. 539.]

(*f*) *Walton v. Walton*, 14 Ves. 322, *per* Sir W. Grant; *Clennell v. Lewthwaite*, 2 Ves. Jun. 474; *Langham v. Sandford*, 17 Ves. 442, 443; *Lynn v. Beaver*, 1 T. & R. 66.

(*a*) *Rachfield v. Careless*, 2 P. W.

158; *Langham v. Sandford*, 17 Ves. 453; S. C. 19 Ves. 641; *Golding v. Yapp*, 5 Mad. 59; *White v. Evans*, 4 Ves. 21; *Walton v. Walton*, 14 Ves. 322, *per* Sir W. Grant; and see *Read v. Stedman*, 26 Beav. 405.

(*b*) *Love v. Gaze*, 8 Beav. 472; *Juler v. Julor*, 29 Beav. 34; *Travers v. Travers*, 14 L. R. Eq. 275; [*Stewart v. Stewart*, 15 Ch. D. 539.]

[(*c*) So now decided, *Re Knowles*, 49 L. J. N. S. Ch. 625.]

(*d*) *Read v. Stedman*, 26 Beav.